

of the falsity (i.e., scienter); (3) intent to deceive and induce reliance; (4) justifiable and actual reliance on the misrepresentation; and (5) resulting damage. (*City of Atascadero v. Merrill Lynch, Pierce, Fenner & Smith, Inc.* (1998) 68 Cal.App.4th 445; *Stansfield v. Starkey* (1990) 220 Cal.App.3d 59, 72-73.) Fraud actions are subject to strict requirements of particularity in pleading. (*Committee on Children's Television, Inc. v. General Foods Corp.* (1983) 35 Cal. 3d 197, 216.) Every element of the cause of action for fraud must be alleged in the proper manner and the facts constituting the fraud must be alleged with sufficient specificity to allow defendant to understand fully the nature of the charge made." (*Stansfield, supra*, 220 Cal.App.3d at 73.) A plaintiff must allege what was said, by whom, in what manner (i.e. oral or in writing), when, and, in the case of a corporate defendant, under what authority to bind the corporation. (See, *Goldrich v. Natural Y Surgical Specialties, Inc.* (1994) 25 Cal.App.4th 772, 782.) The rationale for this "strict requirement of pleading" is not merely notice to the defendant, but because "allegations of fraud involve a serious attack on character, and fairness to the defendant demands that he should receive the fullest possible details of the charge in order to prepare his defense." (*Committee on Children's Television, supra*, 35 Cal.3d 197, 216.)

Nowhere in either fraud cause of action does Cross-Complainants allege any misrepresentations specifically made by Norma, when she made such misrepresentations, or whether they were oral or in writing. While they allege in the 2nd cause of action that Norma made certain misrepresentations and concealments in the settlement agreement [SACC at ¶ 60], as discussed above, there is no evidence Norma was a party to the settlement agreement or made any of the representations contained therein. In the 7th cause of action, Cross-Complainants allege only that Norma knew the property and partnership interests conveyed pursuant to the settlement agreement were subject to Qutami's ownership rights and she benefited from his services. (SACC at ¶ 99.) Accordingly, none of these allegations support fraud causes of action against Norma.

2.

CASE #	CASE NAME	HEARING NAME
CVME2403788	BANUET VS MESKIMEN	DEMURRER ON 2 ND AMENDED COMPLAINT

Tentative Ruling: Notice of non-opposition filed. Sustained with 30 days leave to amend.

3.

CASE #	CASE NAME	HEARING NAME
CVME2403788	BANUET VS MESKIMEN	MOTION TO STRIKE

Tentative Ruling: Notice of non-opposition filed. Granted.

4.

CASE #	CASE NAME	HEARING NAME
CVME2404820	LICONA VS LONGS DRUG STORES CALIFORNIA, L.L.C.	DEMURRER ON 1 ST AMENDED COMPLAINT

Tentative Ruling: CONTINUE TO 09/23/2026 SO AS TO ALLOW PLAINTIFFS TO SUBMIT AN OPPOSITION AND DEFENDANTS TO SUBMIT A REPLY ON THE MERITS.